



March 14, 2025

From:

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Re: *National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan*

“Google’s illegal conduct has created an economic goliath, one that wreaks havoc over the marketplace to ensure that—no matter what occurs—Google always wins.”

-United States Department of Justice (*US v Google*, Case 1:20-cv-03010-APM, ECF 1184)

Travel Lemming is an American small business under threat of censorship by, and theft from, Big Tech companies like Google and OpenAI.

Travel Lemming urges the Administration to reject the proposals of those companies for a reverse wealth transfer from millions of American creators and rightsholders to these two abusive corporations.

Instead, the Administration should create an AI Action Plan that protects smaller creators and publishers, maintains copyright protections, facilitates a robust and competitive licensing marketplace, and requires transparency and disclosure of all AI-generated content.

1) Any AI Action Plan Must Not Undercut Copyright's Incentive to Create

Fundamentally, generative AI is an extractive technology. It works like a compression algorithm: reducing its training material to weights and biases that are then "uncompressed" when prompted for an output.

The key point is that generative AI can only ever be as good as the material that it was trained on. LLMs cannot experience the world, therefore they are limited by their training material. LLMs require new, fresh human-created material in order to function.

If America is to remain competitive in the AI age, we must make sure that the incentive to create is not eroded. That is unfortunately exactly what the proposals by OpenAI and Google would do:

they want this Administration to give them a corporate handout by changing copyright law to allow them to freely train on material that they did not create.

Why should Big Tech companies be allowed to steal from millions of American creators? Being a creator is one of the most coveted careers by Generation Z. Yet, that career path will be totally closed off if Google and OpenAI get their way.

It is essential to freedom that these large corporations not be permitted to steal content from creators and publishers like us. If you permit that, you will be stifling freedom of speech and ruining the thing that makes America great: our many small and varied points of view.

2) Google Is Already Using AI to Censor the Web and Control the Flow of Information to the American Public

Google and OpenAI are not companies that can be trusted by America. We can attest to that from personal experience.

Google in particular wants to use AI to pivot from being a search engine to being an "answer engine." They trained their AI on publishers, and now Google's goal with AI is to become the singular publisher of all information on the Internet.

For example, at Google I/O 2024, the [company announced](#) that in the future "Google will do the Googling for you."

Google's plan is clear: Google wants to control the Internet ecosystem. In this future, "Google.com" will *become* the Internet, a single mega-website that users never need to leave. Users will be steered towards publishers and information that Google approves.

Google is also currently in the process of erasing human creators – like our website – from the open web. For instance, on September 14, 2023, Google changed its publisher guidelines to remove its previous instruction that content should be "written by people, for people." *That very same day*, Google released the first of several algorithm updates that erased many small publishers (including us) from Google search results. You can read more about how Google is using AI to censor small publishers like us in this [CNET story](#).

3) Generative AI Output is Not Fair Use When it Competes With the Original Creator

The purpose of American copyright law is to protect the incentive to create. Yet, generative AI companies are seeking to erode this incentive with an overly broad and unfair interpretation of "fair use."

When an AI output competes with the material it is trained on, it is not fair use.¹ Yet, Google and OpenAI continue to push generative AI as a tool that competes with those of us who created the original data.

Virtually every AI product demonstration by these companies includes an “AI travel planner” use case ([example](#)). These use cases fundamentally seek to replace American travel publishers like us, the same publishers whose content was used to train these systems.

If Google is allowed to train on our data without our consent or compensation, publishers like us could be put out of business.

4) Even Google Has Admitted that Creators Should Get Paid When Their Data is Used by AI Models

Google CEO Sundar Pichai [told the New York Times DealBook Summit](#) that: “There will be a marketplace in the future, I think. There will be creators who create for AI models and get paid for it. I really think that’s part of the future and people will figure it out.”

Google has even done AI licensing deals with some entities, like paying [\\$60 million per year](#) in licensing fees to Reddit.

But now Google asks this Administration to pull up the ladder for small rightsholders, publishers, and creators.

This Administration should not sanction Google’s effort to steal from small publishers. It should not allow Google to build a centralized Internet where only a few voices, selected by Google, can be heard.

5) The Administration’s AI Action Plan Should Focus on Transparency for Users, and Control and Compensation for Creators

The Administration’s AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition and freedom of speech.

First, the government should ensure that publishers and creators have effective consent mechanisms so that we can decide when and where our content is used by AI systems.

Right now, Google presents publishers with a Hobson’s choice: either block your content from appearing in Google search results (effectively erasing your business from the Internet), or let Google’s AI products use your content to inform their outputs (and compete against you).

¹ Charlesworth, Jacqueline, Generative AI’s Illusory Case for Fair Use (August 13, 2024). 27 Vanderbilt Journal of Entertainment and Technology Law (forthcoming 2025) , Available at SSRN: <https://ssrn.com/abstract=4924997> or <http://dx.doi.org/10.2139/ssrn.4924997>

Tech companies should be forced to give granular control to rightsholders, so that we can choose when, where, and how our content is used.

Furthermore, any AI Action Plan must encourage a robust licensing marketplace, so that the incentive to create is preserved.

Google and OpenAI are spending billions of dollars (perhaps trillions) on datacenters for compute. They are [literally building nuclear reactors](#) to power their generative AI businesses.

These companies should be required to at least equally invest in the humans that create the data that power these models.

In their comments on the AI Action Plan, both Google and OpenAI admit that training data has immense economic value. This Administration should ensure that the value generated by that data accrues to the creators of that data.

Lastly, transparency is an important value that should be advanced by any AI Action Plan.

Right now, much of the AI content on the Internet is not labeled as such. Many users consume content without even knowing it is AI generated.

The AI Action Plan should include provisions to require disclosure that content is created with AI, so as to prevent deception of American consumers and voters.

In summary, the Administration's AI Action Plan should advance the interests of regular Americans over the interests of a few giant California corporations. Google and OpenAI in particular cannot be trusted, and the government's plan should seek to devolve power from these entities – not concentrate it further in their (untrustworthy) hands.

Thank you for the opportunity to comment on these important issues.

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